

March 20, 2026, Civil Law & Motion Tentative Rulings

1. CL0001259 Thomas M. Deal v. Fred Gerkenmeyer, et al.

Plaintiff Thomas M. Deal's motion for reconsideration is denied. Any perceived request to approve a Third Amended Complaint is denied as Plaintiff has failed to file a noticed motion requesting such.

At bar, it is unclear what Plaintiff is requesting the court reconsider. It appears Plaintiff is under the incorrect impression the sustaining of Defendant Regional Housing ("RHA") Authority's demurrer without leave to amend necessitated the filing of a third amended complaint just to Defendant Gerkenmeyer. Such is not the case. RHA was dismissed from the case on January 20, 2025, but Defendant Gerkenmeyer remains as a party.

Self-represented litigants are to be treated like any other party and receive no greater consideration than litigants represented by attorneys. *ViaView, Inc. v. Retzlaff* (2016) 1 Cal.App.5th 198, 208. Accordingly, pro se parties are held to the same standards and must comply with the same rules as attorneys. *Nuno v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 811 ("[J]udges are not required to act as counsel for self-represented part[ies], instead, self-represented litigants "must expect and receive the same treatment as if represented by an attorney – no different, no better, no worse.", quoting *Taylor v. Bell* (1971) 21 Cal.App.3d 1002, 1009).

Therefore, Plaintiff is admonished to not file any amended complaint prior to a motion for leave and absent leave of the court. Additionally, contrary to Plaintiff's belief in his papers, the court notes Plaintiff remains on the Vexatious Litigant List, which has been updated as of March 1, 2026.

2. CL0003838 In the Matter of Brandon Murray

The petition for release of mechanic's lien is denied without prejudice.

Introduction

The case concerns the property located at 16343 Rattlesnake Rd., Grass Valley, CA 95945 ("Property"). Petitioners Brandon Murray and Krystal Murray are the owners of the Property. On November 3, 2025, Respondent Andrew Ehlers recorded a mechanic's lien against the property in the amount of \$95,000.00 for labor, services, equipment, or materials furnished by Respondent for work of improvement.

Legal Standard

After a mechanic's lien has been recorded, "[t]he owner of property or the owner of any interest in property subject to a claim of lien may petition the court for an order to release the property from the claim of lien if the claimant has not commenced an action to enforce the lien within the time provided in Section 8460." Civ. Code § 8480(a). A claimant must commence an action to enforce a lien within 90 days of recording the lien. Civ. Code, § 8460(a). Civil Code § 8460